

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANITA TOLBERT,

Plaintiff,

Index No.:

Date Filed:

-against-

Plaintiff designates
KINGS COUNTY
as the place of trial

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
P.O. KEANE R. CONNOR [SHIELD #26409], P.O.
MICHAEL J. MASELLA [SHIELD #17222], P.O.
MUBBASHAR ZAHID [SHIELD #3267], and
JOHN DOE AND JANE DOE #1-4 (the names John
and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

SUMMONS

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this amended summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this amended summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this amended summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
May 3, 2023

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiff
56 Willoughby Street, Third Floor
Brooklyn, New York 11201
(718) 874-6045

To:

THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, NY 10007

Lieutenant Timothy P. Brovakos [Tax Reg. #943025]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

P.O. Keane R. Connor [Shield #26409]
NYPD-60th Precinct
2951 W 8th Street
Brooklyn, NY 11224

P.O. Michael J. Masella [Shield #17222]
NYPD-60th Precinct
2951 W 8th Street
Brooklyn, NY 11224

P.O. Mubbashar Zahid [Shield #3267]
NYPD-71st Precinct
421 Empire Boulevard
Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANITA TOLBERT,

Plaintiff,

Index No.

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG. #943025],
P.O. KEANE R. CONNOR [SHIELD #26409], P.O.
MICHAEL J. MASELLA [SHIELD #17222], P.O.
MUBBASHAR ZAHID [SHIELD #3267], and
JOHN DOE AND JANE DOE #1-4 (the names John
and Jane Doe being fictitious, as the true names
are presently unknown),

Defendants.

-----X
Plaintiff, ANITA TOLBERT, by her attorney, The Law Offices of UGO UZOH, P.C.,
complaining of the defendants herein, The City of New York, Lieutenant Timothy P.
Brovakos [Tax Reg. #943025], P.O. Keane R. Connor [Shield #26409], P.O. Michael J.
Masella [Shield #17222], P.O. Mubbashar Zahid [Shield #3267], and John Doe and Jane
Doe #1-4 (collectively, “defendants”), respectfully alleges as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

THE PARTIES

2. Plaintiff is and was at all times material herein a resident of Brooklyn, County of Kings, City and State of New York.
3. Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.

4. The City of New York Police Department (“NYPD”) is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.
5. Defendant Lieutenant Timothy P. Brovakos [Tax Reg. #943025] was at all times material herein a lieutenant employed by the NYPD. He is named here in his official and individual capacities.
6. Defendant P.O. Keane R. Connor [Shield #26409] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
7. Defendant P.O. Michael J. Masella [Shield #17222] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
8. Defendant P.O. Mubbashar Zahid [Shield #3267] was at all times material herein a police officer employed by the NYPD. He is named here in his official and individual capacities.
9. Defendants John Doe and Jane Doe #1-4 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
10. Defendants Brovakos, Connor, Masella, Zahid, and John Doe and Jane Doe #1-4 are collectively referred to herein as “defendant officers”.
11. At all times material to this Complaint, the defendant officers acted toward plaintiff under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

12. On or about December 1, 2019, at approximately 3:00 a.m., defendant officers, acting in concert, arrested plaintiff without cause on Avenue X, at or close to its intersection with W 11th Street, Brooklyn, New York, and unreasonably detained the plaintiff for a lengthy period of time, and eventually charged the plaintiff with various crimes including N.Y. VTL 511(2) ‘Aggravated unlicensed operation of a motor vehicle in the second degree’ and 34 RCNY 4-07(b)(1) ‘Obstruction of traffic’.

13. This was in the middle of the night in a quiet residential neighborhood.
14. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
15. Prior to the arrest, plaintiff went out to socialize with her cousin, Diane Dawson, and their friend, Angie.
16. After their night out, plaintiff and Angie drove Diane home.
17. Plaintiff briefly stopped at the aforementioned arrest location to drop off Diane who at the time resided nearby at 105 Avenue X.
18. At all times material to this Complaint, Avenue X was a two-lane road -- with a lane for traffic in each direction.
19. At all times material to this Complaint, the right lane of Avenue X was closed to thru traffic beginning from or close to its intersection with W 11th Street to its intersection with W 8th Street.
20. Because of the road closure, plaintiff parked her vehicle close to the sidewalk located on the right lane of Avenue X -- within a few feet of its intersection with W 11th Street.
21. Plaintiff intended to make a U-turn into what would then be the left one-way traffic lane of Avenue X after dropping off Diane.
22. No vehicle was parked on either side of the plaintiff's vehicle, and there were no obstructions of any kind on the road.
23. The road was empty with no traffic.
24. Immediately after Diane exited the vehicle, and while the vehicle was still parked close to the sidewalk of the then closed right lane of Avenue X, defendant officers approached the plaintiff and Angie with their guns drawn.
25. Upon approach, defendant officers immediately directed the plaintiff to hand over her driver's license and registration to them.
26. Plaintiff inquired as to the reason why defendant officers were asking for her license and registration.
27. Defendant officers stated that the vehicle was double parked and was obstructing traffic at approximately 3:00 a.m. on the closed right lane of Avenue X.

28. Shortly thereafter, defendant officers forcibly grabbed the plaintiff, pulling and pushing her, and proceeded to tightly handcuff the plaintiff with her hands placed behind her back causing the plaintiff to experience pain and numbness in her hands.
29. Defendant officers proceeded to perform an illegal search of the plaintiff.
30. Defendant officers' illegal and warrantless search of the plaintiff did not yield any contraband.
31. Defendant officers eventually placed the plaintiff inside their police vehicle and transported the plaintiff to NYPD-60th Precinct.
32. Defendant officers seized and/or impounded the plaintiff's vehicle and drove the vehicle to the precinct.
33. While at the precinct, defendant officers further subjected the plaintiff to an illegal search.
34. Defendant officers' illegal and warrantless search of the plaintiff did not yield any contraband.
35. Upon information and belief, defendant officers also searched the plaintiff's vehicle.
36. Defendant officers' illegal and warrantless search of the plaintiff's vehicle did not yield any contraband.
37. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiff saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
38. After detaining the plaintiff at the precinct for a lengthy period of time, defendant officers caused a legal process to issue against the plaintiff requiring the plaintiff to appear in court to defend the false charges levied against her by defendants.
39. Defendant officers thereafter released the plaintiff.
40. At some point following the plaintiff's arrest, defendant officers met with and/or forwarded their arrest paperwork to prosecutors employed by the Kings County District Attorney's Office.

41. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that the plaintiff double parked her vehicle and was obstructing traffic.
42. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against the plaintiff.
43. On or about January 7, 2020, plaintiff was arraigned on a criminal court complaint charging her with N.Y. VTL 511(1)(a) 'Aggravated unlicensed operation of a motor vehicle in the third degree', N.Y. VTL 512 'Operation while registration or privilege is suspended or revoked', N.Y. VTL 509(1) 'Unlicensed operator', and 34 RCNY 4-07 (b)(1) 'Obstruction of traffic'.
44. Upon arraignment, plaintiff pled guilty to N.Y. VTL 509(1) 'Unlicensed operator'.
45. Plaintiff at the time was unaware that her license had been suspended due to insurance lapse.
46. All other charges levied against plaintiff were summarily dismissed.
47. Upon release from her unlawful detention, defendant officers eventually released the plaintiff's vehicle to her.
48. Upon retrieving her vehicle, plaintiff discovered that the vehicle was thoroughly searched and that several components were pulled or ripped apart, damaged and/or missing.
49. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
50. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiff.
51. As a result of the aforesaid actions by defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation,

shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

52. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 51 of this complaint as though fully set forth herein.
53. Defendant officers arrested the plaintiff without probable cause or reasonable grounds.
54. The conduct of defendant officers, as described herein, amounted to false arrest.
55. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
56. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

57. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 56 of this complaint as though fully set forth herein.
58. Defendant officers purposely or knowingly used unreasonable force against the plaintiff.
59. There was no legitimate governmental interest in defendant officers' unnecessary and wanton infliction of pain and suffering upon the plaintiff.
60. The conduct of defendant officers, as described herein, amounted to excessive use of force.
61. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

62. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE - against defendant officers

63. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 62 of this complaint as though fully set forth herein.
64. Defendant officers manufactured evidence of criminality against the plaintiff which the prosecutors relied upon to initiate criminal actions against the plaintiff.
65. In addition to other things, defendant officers falsely stated to the prosecutors that the plaintiff double parked her vehicle and was obstructing traffic.
66. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of due process rights.
67. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
68. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

69. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 68 of this complaint as though fully set forth herein.
70. Defendant officers did not have any reasonable grounds to believe that the plaintiff was engaged (or had planned to engage) in any criminal activity.
71. Defendant officers by their conduct as described herein subjected plaintiff to unlawful stop & frisk and unreasonable search & seizure.

72. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

73. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

74. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 73 of this complaint as though fully set forth herein.

75. Defendant officers denied plaintiff her due process right to be free from continued detention after it was or should have been known that plaintiff was entitled to release.

76. The conduct of defendant officers, as described herein, amounted to unreasonable detention.

77. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

78. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

79. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 78 of this complaint as though fully set forth herein.

80. Based on the false testimony of defendant officers, the prosecutors initiated criminal actions against the plaintiff.

81. Plaintiff was required to, and did, appear in court to defend herself from the false charges levied against her with malice by defendants.

82. Eventually, the criminal proceeding(s) terminated in plaintiff's favor.

83. Because of the conduct of the defendants, plaintiff was maliciously prosecuted.
84. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
85. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
86. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

87. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 86 of this complaint as though fully set forth herein.
88. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
89. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
90. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
91. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: FAILURE TO
TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against
defendant City

92. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 91 of this complaint as though fully set forth herein.
93. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, the proper procedures for obtaining, returning, destroying and/or retaining DNA, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.
94. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in robbery, narcotics, drugs, guns, weapons and/or other illicit activities.
95. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
96. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
97. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in

unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).

98. Notably, numerous civil rights complaints filed in this Court have similarly alleged that police officers in those cases, including the defendant officers, routinely harass individuals who are members of various racial/ethnic minority groups and have refused to conduct any investigations concerning their complaints simply because of their membership of the racial/ethnic minority groups. *See, e.g., Lawrence Johnson v. City of New York* (Index No. 501418/2023); *Jawanza Lewis v. City of New York* (Index No. 519597/2021); *Tyquan Spann v. City of New York* (Index No. 526130/2019); *Dominique Gist v. City of New York* (Index No. 521213/2019); *Dayvoun Joyner v. City of New York* (Index No. 513707/2019).
99. Defendant City has settled numerous lawsuits against several officers assigned to the NYPD alleging, among other things, that the officers fabricated evidence, and falsely arrested the plaintiffs without probable cause. *See, e.g., Tiara Weber v. City of New York* (22 CV 4518); *Jacob Killer v. City of New York* (21 CV 8132); *Tony Holley v. City of New York* (21 CV 4682); *Dwayne Holley v. City of New York* (21 CV 4681); *Johnny Rutledge v. City of New York* (21 CV 4436); *Bilal Jacks v. City of New York* (20 CV 1012); *Trevonne King v. City of New York* (19 CV 3361); *Mondaray Whitaker v. City of New York* (18 CV 6897); *Warren Monk v. City of New York* (18 CV 6458); *Justin Baker v. City of New York* (17 CV 4493); *Tony Holley v. City of New York* (17 CV 278); *Eric Davis v. City of New York* (16 CV 385); *Jimmy Wilson v. City of New York* (15 CV 6326); *Donnell Jackson v. City of New York* (15 CV 4109); *Crystal Whitfield v. City of New York* (14 CV 6085).
100. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police officers routinely stop, search, and/or arrest innocent citizens without probable cause.

101. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiff.
102. Defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.
103. The actions of defendants, acting under color of State law, deprived plaintiff of her due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in her person and property, to be free from abuse of process, the excessive use of force and the right to due process.
104. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

NINTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

105. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 104 of this complaint as though fully set forth herein.
106. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting her and depriving her of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) &

Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

107. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiff of her constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
108. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of her constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
109. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

TENTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) - against defendants

110. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 109 of this complaint as though fully set forth herein.
111. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
112. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

ELEVENTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) - against defendants

113. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 112 of this complaint as though fully set forth herein.

114. Based on the false testimony of defendants, the prosecutors initiated criminal actions against the plaintiff.
115. Plaintiff was required to, and did, appear in court to defend herself from the false charges levied against her with malice by defendants.
116. Eventually, the criminal proceedings terminated in plaintiff's favor.
117. Because of the conduct of the defendants, plaintiff was maliciously prosecuted.
118. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

119. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 118 of this complaint as though fully set forth herein.
120. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiff.
121. Plaintiff's emotional distress has damaged her personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention and imprisonment by defendants.
122. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

123. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 122 of this complaint as though fully set forth herein.
124. Upon information and belief, defendant City failed to properly train, supervise or discipline its agents, servants, employees, officers and/or representatives, including the defendant officers, concerning correct

practices in conducting investigations, the reasonable stop and search of individuals and/or their properties, the proper use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.

125. Upon information and belief, defendant City failed to properly screen, hire and/or retain the defendant officers.
126. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.
127. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiff or to those in a like situation would probably result from such conduct described herein.
128. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
129. Upon information and belief, defendant City's negligence in screening, hiring and retaining defendant officers proximately caused plaintiff's injuries.

DAMAGES

130. That by reason of the foregoing, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;

- c. For costs of suit herein, including plaintiff's reasonable attorney's fees;
and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
May 3, 2023

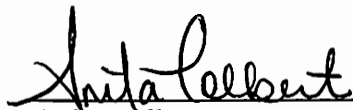
UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiff
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STATE OF NEW YORK
COUNTY OF KINGS

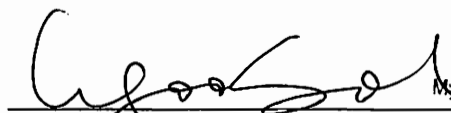
SS:

ANITA TOLBERT being duly sworn deposes and says that she is the plaintiff in foregoing Summons and Verified Complaint. That she has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of her own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, she believes them to be true.


Anita Tolbert

SWORN TO BEFORE ME THIS 30 DAY

OF MAY 2023


NOTARY PUBLIC

UGOCHUKWU UZO
Notary Public - State of New York
No. 02UZ6*81083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF ____, 20__

ANITA TOLBERT,

Plaintiff,

-against-

THE CITY OF NEW YORK, LIEUTENANT
TIMOTHY P. BROVAKOS [TAX REG.
#943025], P.O. KEANE R. CONNOR
[SHIELD #26409], P.O. MICHAEL J.
MASELLA [SHIELD #17222], P.O.
MUBBASHAR ZAHID [SHIELD #3267], and
JOHN DOE AND JANE DOE #1-4 (the names
John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.

SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I
have served, filed or submitted to the court in the within
action are not frivolous pursuant to Sec. 130-1.1a of the
Rules of the Chief Administrator (22NYCRR)

Ugochukwu Uzoh
Ugochukwu Uzoh

____ May 3, 2023 ____
Dated

Ugo Uzoh, P.C.

Attorneys for plaintiff
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR
BROOKLYN, NY 11201**

TEL: (718) 874-6045